

CT-268 PROFESSIONAL ETHICS

LECTURE 4

MORAL THEORIES: UTILITARIANISM, RIGHTS ETHICS, AND DUTY ETHICS

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WHAT ARE MORAL THEORIES?

- A theory defines terms in uniform ways and links ideas and problems together in consistent manner.
- The concept of morality is an important aspect in moral theories.
- This lecture discusses some of the key moral theories:
 - Utilitarianism
 - Rights Ethics
 - Duty Ethics



UTILITARIANISM

- Also known as **Consequentialism**.

- **Famous Proponents:** Jeremy Bentham, J.S. Mill

What makes something good or bad, right or wrong, is that it produces the greatest amount of pleasure (or lack of pain) for the greatest number of people.

- **Basic Principle:** Greatest Happiness
 - Maximizing positive outcomes for the largest number of people, negative outcomes for lowest number of people.
 - One should choose the action which will lead to the greatest happiness (that is, pleasure or lack of pain) overall.
 - One's own pleasure and pain only count as much as any other person's affected.



- Assessment of net benefits includes any important indirect effects.
- For example,
 - Assessing the effects of pollutant discharge from a factory on the immediate surrounding environment and those down stream or down wind from the factory.
- Utilitarianism has two forms:
 - Act Utilitarianism
 - Rule Utilitarianism



Act Utilitarianism

- It asks a person to assess the effects of all actions.
- Rejects the view that actions can be classified as right or wrong in themselves.
- Example: Lying is ethical if it produces more good than bad.
- Can you come up with any such scenario?



Rule Utilitarianism

- It asks a person to assess actions according to a set of rules designed to yield the greatest net benefit to all affected.
- It compares act to rules and does not accept an action as right if it maximizes net benefits only once.
- Example: Lying is always wrong or “*thou shalt not lie!*”
- Can you come up with any such scenario?



Limitations of Utilitarianism

- Hard to use in situations that are difficult to quantify.
- Does not include rights and justice.
- Then why do think it is popular and widely used?



Scenario: Clinical Trials

- A few doctors decide that a number of experiments on a few people, even if most of them died, would be worth it if they could find a cure for a disease that would relieve the suffering of millions of people.
- Utilitarianism would give the approval for such because it produces the greatest good for the greatest number of people.

What Makes an Action Right or Wrong?





Cost-Benefit Analysis

- It is an application of utilitarianism.
- The goal is to maximize Benefit-to-Cost ratio.
- Benefit:
 - It is a quantifiable method for analyzing ethical dilemmas.
- Drawback:
 - Similar to utilitarianism in the sense that benefits are often difficult to predict.



DUTY ETHICS AND RIGHTS ETHICS

- Collectively, also known as **Deontology**.
- **Duty Ethics:** Ethical actions should be followed as universal principles.
- For example:
 - Be honest.
 - Do not harm others.
 - Perform your duties with integrity.
- **Rights Ethics:** Humans have rights to life, liberty, and property.
- People's rights imply a duty for others to respect them.
- Duty and rights ethics are *two sides of the same coin*.



Challenges in Duty Ethics and Rights Ethics

- Contradictions between the rights of two groups.
- Example: Patient Privacy vs. Public Health
 - Patients have a right to keep their medical information private.
 - Health authorities have a duty to protect the public from infectious diseases.
 - A hospital may need to share information about an infectious patient with health authorities.
 - Sharing the information can protect the public but may limit the patient's right to privacy.
- Whose rights should take precedence?



Challenges in Duty Ethics and Rights Ethics

- Conflict between individual rights and the benefit of the community.
- Example: Mandatory Vaccinations
 - An individual has the right to refuse medical treatment.
 - However, population immunity benefits the entire community and protects vulnerable populations.
- Should vaccination be mandatory for public health?



Rights Ethics Examples

- **Example 1: Employee Privacy**

- A company wants to monitor everything employees do on their computers, including their personal messages.
- The company may want to improve security.
- However, employees have a right to privacy.
- Monitoring private messages without proper justification may violate that right.
- Rights Ethics: Respect the employee's right to privacy.



Rights Ethics Examples

- **Example 2: Student Data**
- A tuition center has students' personal information, such as phone numbers and addresses. A company asks the center to sell this information.
- Even if the center can make money, students have a right to privacy.
- Selling the data without permission violates their rights.
- Rights Ethics: Protect students' personal information.



Duty Ethics Examples

- **Example 1: Software Engineer Finds a Safety Problem**

- A software engineer discovers a serious bug in the software used in a medical device.
- The company says:
 - “Don't report it because fixing it will delay the product.”
- The engineer has a duty to protect users from harm.
- Duty Ethics: Report the problem and make sure it is addressed, even if it causes a delay.



Duty Ethics Examples

- **Example 2: Honest Research**

- A researcher discovers that the results of an experiment do not support their hypothesis.
- Changing the results would make the research look better, but the researcher has a duty to report the results honestly.
- Report the actual results.
- Duty Ethics: Do not manipulate the data.

HOW TO DECIDE WHICH THEORY TO USE?



- In order to obtain a complete understanding of a problem, it is best to analyze the situation using multiple ethical theories.
- Consider this scenario:
- A chemical plant discharges a hazardous waste into the groundwater, the city will be compromised with health problems.



Apply Moral Theories

- Deontology indicates that this is morally wrong because it violates fundamental moral rules and fails basic tests of fairness.
- Consequentialism indicates the same.
 - Economic benefits would be outweighed by negative effect of pollution and costs to ensure a safe municipal water supply.
- These theories show the same conclusion.

What if The Theories Come Up with Different Conclusions?



- The answers should be weighed.
- Generally, rights and duty ethics should take precedence over utilitarian consideration because the rights of individuals should receive stronger weight than the needs of society as a whole.
- Consider this scenario: **Data Scraping for Medical AI Training**
- A research team wants to scrape thousands of public medical forum posts without explicit consent to train an AI that diagnoses rare diseases.



- **Utilitarianism (Focus on Outcomes):** Proceed with scraping. The minor inconvenience or potential discomfort to users is heavily outweighed by the massive societal benefit of a free, life-saving diagnostic tool that helps millions.
- **Rights Ethics (Focus on Individual Entitlements):** Do not scrape. Every individual has an inherent right to privacy and control over their own data. Scraping this information without informed consent violates their digital autonomy, regardless of the good it might do.
- **Duty Ethics (Focus on Rules & Duties):** Do not scrape. The developer has a fundamental moral duty to act with integrity and follow universal rules (e.g., "Do not steal data" or "Do not treat people as a mere means to an end"). If the rule cannot be applied universally to all scraping, it is unethical.



- Consider this scenario: **Government Backdoors in Encryption**
- An engineer at a messaging app company is ordered by the government to build a "backdoor" into their end-to-end encryption to help law enforcement track down dangerous criminals.



- **Utilitarianism:** Build the backdoor if the team calculates that the physical safety and security provided by catching criminals outweighs the generalized "surveillance anxiety" or security risks to average users. (Alternatively, if they calculate that hackers exposing the backdoor would cause catastrophic global financial harm, they would refuse).
- **Rights Ethics:** Do not build the backdoor. Every user has an absolute right to private communication and security. Creating a vulnerability explicitly breaches that right and compromises their personal liberty.
- **Duty Ethics:** Do not build the backdoor. Software engineers have a professional duty to create secure, reliable systems and protect user data. Deliberately introducing a security flaw is a direct violation of the duty to write safe code and be honest with users about their security.



Come up with a few examples!

